

Court No. - 21

Case :- WRIT - C No. - 11131 of 2023

Petitioner :- Santosh Sonkar

Respondent :- U.P.Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dhirendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent-Electricity Department shall obtain instructions as to whether final assessment order has been passed in the case or not and how the provisions of U.P. Electricity Supply Code had been followed.

Put up as fresh on 17.04.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.4.2023

Shivangi

Court No. - 21

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed, a week's further time is allowed to learned counsel for the respondents to obtain instructions.

Put up as fresh on 26.04.2023.

Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.4.2023

SL

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Petitioner :- Santosh Sonkar

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Counsel for Petitioner :- Dharendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has assailed the demand notice dated 10.08.2022 issued under Section 3 of the U.P. Government Electrical undertaking (Recovery of Dues) Act, 1958 and consequential order dated 18.10.2022 passed by respondent no.2 for recovery of a sum of Rs.4,03,633/- and other charges from the petitioner.

Shri Udit Chandra, learned counsel appearing for the respondent electricity department on instruction states that the impugned recovery has been withdrawn and that a fresh order will be passed after affording opportunity of filing objections/hearing to the petitioner.

Having regard to the said statement, we dispose of the instant petition with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.4.2023

S.P.